

FINAL

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF DELAWARE**

QORVO, INC.,

Plaintiff,

v.

AKOUSTIS TECHNOLOGIES, INC. and
AKOUSTIS, INC.,

Defendants.

C.A. No. 1:21-cv-01417-JPM

SPECIAL VERDICT FORM

INSTRUCTIONS

When answering the following questions and completing this Verdict Form, please follow the directions provided on each page that follows and the Jury Instructions that you have been given. Your answer to each question must be unanimous. Some of the questions contain legal terms that are defined and explained in the Jury Instructions. Please refer to the Jury Instructions if you are unsure about the meaning or usage of any legal term that appears in the questions below.

As used in this Verdict Form:

1. “Plaintiff” and “Qorvo” both refer to Plaintiff Qorvo, Inc.
2. “Defendants” and “Akoustis” both collectively refer to defendants Akoustis Technologies, Inc. and Akoustis, Inc.
3. “Asserted Patents” refers collectively to U.S. Patent No. 7,522,018 and U.S. Patent No. 9,735,755.
4. “’018 Patent” refers to U.S. Patent No. 7,522,018.
5. “’755 Patent” refers to U.S. Patent No. 9,735,755.

You will note that the Verdict Form uses the eight alleged trade secret groups that the Plaintiff proposed in the presentation of some of the Plaintiff’s proof. The Court is not making any factual determinations as to the alleged trade secrets, their organization, whether they are properly grouped together, or whether or not each is a trade secret. The Verdict Form’s organization is only for your convenience. All questions of fact are for you, the jury, to decide.

QUESTIONS AND ANSWERS

We, the jury, unanimously find as follows:

**TRADE SECRET MISAPPROPRIATION UNDER
THE DEFEND TRADE SECRETS ACT AND
THE NORTH CAROLINA TRADE SECRET ACT**

For each of the ALLEGED TRADE SECRETS that Plaintiff Qorvo presented at trial, please answer the following questions as instructed in this section:

Question No. 1(a):

Please write "YES" or "NO" in each column of the table below.

ALLEGED TRADE SECRET	Has Qorvo established by the greater weight or preponderance of the evidence that (a) this alleged trade secret qualifies as a trade secret and (b) Akoustis is liable for trade secret misappropriation for this trade secret?	Has Qorvo established by a greater weight or preponderance of the evidence that Akoustis was unjustly enriched by misappropriating this trade secret?
Group 1		
1.1		
1.2		
1.3		
1.4		
1.5		
1.6		
Group 2		
2.1		
2.2		
2.3		
2.4		
2.5		
2.6		
2.7		
2.8		
2.9		
2.10		
2.11		
2.12		
2.13		
2.14		
2.15		
2.16		

FINAL

Group 3		
3.1		
3.2		
3.3		
Group 4		
4.1		
Group 5		
5.1		
5.2		
5.3		
5.4		
5.5		
Group 6		
6.1		
6.2		
6.3		
6.4		
6.5		
6.6		
Group 7		
7.1		
7.2		
7.3		
7.4		
Group 8		
8.1		
8.2		
8.3		
8.4		
8.5		

IF YOU ANSWERED “YES” IN BOTH COLUMNS FOR ANY ALLEGED TRADE SECRET IN QUESTION 1(a), THEN ANSWER QUESTIONS 1(b) AND 1(c) BELOW. IF YOU DID NOT ANSWER “YES” IN BOTH COLUMNS FOR ANY ALLEGED TRADE SECRET IN QUESTION 1(a), WRITE “N/A” IN QUESTION 1(b) AND 1(c) AND MOVE ON TO QUESTION 2.

Question No. 1(b):

State the amount Akoustis was unjustly enriched by misappropriating Qorvo’s trade secrets as to which you have answered “Yes” and “Yes” in Question 1(a) above.

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FINAL

Question No. 1(c)

Was Akoustis's misappropriation of any of Qorvo's trade secrets as to which you answered "Yes" and "Yes" in Question 1(a) above willful and malicious? *Please write "YES," "NO," or "N/A" on the line below.*

IF YOU ANSWERED "YES" TO QUESTION 1(c), ANSWER QUESTION 1(d) BELOW. IF YOU ANSWERED "NO" OR "N/A" TO QUESTION 1(c), WRITE "N/A" ON QUESTION 1(d) AND MOVE ON TO QUESTION 2.

Question No. 1(d)

What amount of exemplary damages, if any, do you award to Qorvo against Akoustis?

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FINAL

CIVIL CONSPIRACY

Question No. 2(a):

Has Qorvo proven by a preponderance of the evidence its Civil Conspiracy claim against Akoustis?

Please write "YES" or "NO" on the line below.

***ANSWER QUESTION 2(b) ONLY IF YOU ANSWERED "YES" TO QUESTION 2(a).
OTHERWISE, DO NOT ANSWER AND MOVE ON TO QUESTION 3.***

Question No. 2(b):

Do you find that Qorvo has proven by a preponderance of the evidence that actual damage to Qorvo was caused by the conspiracy?

Please write "YES" or "NO" on the line below.

***ANSWER QUESTIONS 2(c) ONLY IF YOU ANSWERED "YES" TO QUESTION 2(b).
OTHERWISE, DO NOT ANSWER QUESTION 2(c) AND MOVE ON TO QUESTION 3.***

Question No. 2(c):

What amount of damages for actual loss, if any, were caused by Akoustis' action and thus you award to Qorvo against Akoustis?

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FINAL

FALSE ADVERTISING UNDER THE LANHAM ACT

Question No. 3(a):

Has Qorvo proven by a preponderance of the evidence each of the elements of its False Advertising claim against Akoustis? *Please write "YES" or "NO" on the line below.*

***ANSWER QUESTION 3(b) ONLY IF YOU ANSWERED "YES" TO QUESTION 3(a).
OTHERWISE, DO NOT ANSWER AND MOVE ON TO QUESTION 4.***

Question No. 3(b):

What damages, if any, did Qorvo prove by a preponderance of the evidence it is entitled to for Akoustis' false advertising under the Lanham Act?

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FINAL

UNFAIR AND DECEPTIVE TRADE PRACTICES UNDER NORTH CAROLINA LAW

Question No. 4(a):

Has Qorvo proven by a preponderance of the evidence its Unfair and Deceptive Trade Practices Act claim against Akoustis?

Please write "YES" or "NO" on the line below.

***ANSWER QUESTION 4(b) ONLY IF YOU ANSWERED "YES" TO QUESTION 4(a).
OTHERWISE, DO NOT ANSWER AND MOVE ON TO QUESTION 5.***

Question No. 4(b):

Did Qorvo prove by a preponderance of the evidence damages caused by Akoustis' action(s) for the alleged unfair and deceptive practices?

Please write "YES" or "NO" on the line below.

***ANSWER QUESTION 4(c) ONLY IF YOU ANSWERED "YES" TO QUESTION 4(b).
OTHERWISE, DO NOT ANSWER AND MOVE ON TO QUESTION 5.***

Question No. 4(c):

What damages, if any, did Qorvo prove by a preponderance of the evidence it is entitled to for Akoustis' unfair and deceptive trade practices?

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FINAL

PATENT INFRINGEMENT**Question No. 5(a):**

Do you find that Qorvo has proven by a preponderance of the evidence that the claims of the '018 or the '755 Patents have been infringed? *Please write "YES" or "NO" in each box below.*

PATENT CLAIM	VERDICT
'018 Patent, Claim 1	
'018 Patent, Claim 12	
'755 Patent, Claim 9	
'755 Patent, Claim 10	

ONLY ANSWER THE FOLLOWING QUESTION 5(b) AND 5(c) IF YOU ANSWERED "YES" TO ANY PART OF QUESTION 5(a). OTHERWISE, DO NOT ANSWER QUESTION 5(b) OR 5(c) AND MOVE DIRECTLY TO THE UNANIMOUS VERDICT PAGE.

Question No. 5(b) (damages)

What do you find is the amount of damages, if any, that should be paid to Qorvo for the infringement of each Asserted Patent, to compensate for the damages caused by Akoustis' infringement?

'018 Patent: \$ _____

'755 Patent: \$ _____

Question No. 5(c):

Did Qorvo prove by a preponderance of the evidence that Akoustis' infringement of the '018 or '755 patent was willful? *Please write "YES" or "NO" in each box below.*

PATENT CLAIM	VERDICT
'018 Patent, Claim 1	
'018 Patent, Claim 12	
'755 Patent, Claim 9	
'755 Patent, Claim 10	

FINAL

UNANIMOUS VERDICT

Upon reaching a unanimous verdict on each question above, the presiding juror must sign and each juror must sign below. We, the jury, unanimously agree to the answers to the above questions and return them under the instructions of this Court as our verdict in this case.

Date:

Presiding Juror

Juror

Juror

Juror

Juror

Juror

Juror

Juror

Juror

Juror